

**CHAPTER cvi.**

An Act to empower the London County Council to construct and work new tramways to alter and reconstruct existing tramways and to make street improvements and other works and for other purposes. A.D. 1911.

[18th August 1911.]

WHEREAS it is expedient that the London County Council (in this Act referred to as "the Council") should be empowered to construct and maintain the new tramways and to alter reconstruct and maintain the existing tramways described in this Act:

And whereas it is expedient that provisions should be made as herein-after set forth with respect to the use and working of such tramways and that such further powers should be conferred upon the Council as are herein-after set forth:

And whereas it is expedient to confer on the Council powers to make the street improvements widenings and works and to acquire the lands herein-after described for the purposes herein-after specified:

And whereas it is also expedient to confer upon the Council in connexion with and for the purposes of the tramways and improvements by this Act authorised and otherwise in connexion with their tramway undertaking the powers herein-after set forth:

And whereas it has been agreed between the Council on the one hand and the council of the metropolitan borough of Lewisham on the other hand that such last-mentioned council shall contribute towards the costs and expenses of the Council in relation to certain improvements in this Act mentioned and it is expedient that provisions relative to such contribution should be made as herein-after set forth:

A.D. 1911.

And whereas it is expedient to confer on the Council such powers as are herein-after set forth with regard to the raising of money for the purposes of this Act:

And whereas estimates have been prepared by the Council as to the amount which they will require to expend on capital account for the purposes of Parts II. III. and IV. of this Act and such estimates (being in each case calculated to cover the original cost of purchasing lands and executing the works without any allowance in respect of returns from resale or letting of lands which will be ultimately available for that purpose or from contributions by the said metropolitan borough council) are as follows:—

For the construction and equipment of new tramways the reconstruction of existing tramways and the purchase of lands therefor and for other purposes of the tramway undertaking -	£ 145,210
For the street improvements widenings and works connected therewith and for purchase of lands therefor -	118,950
Total -	<u>£264,160</u>

And whereas the Council have caused to be deposited with the clerk of the peace for the county of London plans and sections describing the lines and levels of the tramways and works by this Act authorised and the lands which may be taken for the purposes thereof or otherwise under the powers of this Act and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands and such plans sections and book of reference are respectively referred to in this Act as the deposited plans sections and book of reference:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the London County Council (Tramways and Improvements) Act 1911.

(Tramways and Improvements) Act, 1911.

2. This Act is divided into Parts as follows (namely):—

A.D. 1911.

Part I.—Preliminary.

Act divided
into Parts.

Part II.—Tramways.

Part III.—Street Works.

Part IV.—Purchase of Lands.

Part V.—Extensions of Time.

Part VI.—Miscellaneous and Financial.

3. The following Acts and parts of Acts (that is to say):—

Incorpora-
tion of Acts.

The Lands Clauses Acts; and

Section 3 (Interpretation of terms) and Parts II. and III.
of the Tramways Act 1870;

as far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act:

Provided that sections 127 and 133 of the Lands Clauses Consolidation Act 1845 shall not apply in the case of any lands purchased by the Council under the powers of this Act:

Provided also that notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 any claim for compensation under this Act or any Act incorporated herewith by any person having or in respect of any interest in the lands in respect of which compensation is claimed not greater than that of a lessee or tenant for any term of which not more than eighteen months remain unexpired at the time when the claim is made shall be determined by justices in the manner provided by section 121 of the Lands Clauses Consolidation Act 1845.

4. In this Act unless the subject or context otherwise require—

Interpreta-
tion.

“The Council” means the London County Council;

“The county” means the administrative county of London;

“The new tramways” means the tramways by this Act authorised and any part thereof;

“The reconstructed tramways” means the tramways which may be reconstructed under this Act and any part thereof;

“The tramways” means the new tramways and the reconstructed tramways and any part thereof;

A.D. 1911.

"The improvements" means the street improvements and the widenings by this Act authorised and any part thereof;

"The works" means the tramways and the improvements;

"Street" has the meaning assigned to that term in the Metropolis Management Acts 1855 to 1893.

Terms to which meanings are assigned by enactments incorporated with this Act or which have therein special meanings have in this Act and for the purposes of this Act the same respective meanings:

Provided that for the purposes of this Act the expressions "the promoters of the undertaking" and "the company" in the Lands Clauses Acts shall be construed to mean the Council.

PART II.

TRAMWAYS.

Power to
make new
tramways.

5. Subject to the provisions of this Act the Council may make form lay down and maintain the new tramways herein-after described in the lines and according to the levels shown on the deposited plans and sections with all such rails plates sleepers junctions turntables turnovers crossings passing-places works and conveniences connected therewith as may be necessary or proper therefor.

The new tramways herein-before referred to and authorised by this Act are—

Tramway No. 9 (2 furlongs 0·8 chain or thereabouts in length whereof 1 furlong 6·8 chains or thereabouts will be double line and 4 chains or thereabouts will be single line) wholly in the parish and metropolitan borough of Camberwell commencing by a junction with the existing tramway in Grove Lane at a point $\frac{1}{2}$ chain or thereabouts northward of the junction of Grove Hill Road with Grove Lane and passing along Grove Lane and Dog Kennel Hill to and terminating in Grove Vale by a junction with the existing tramway at a point $\frac{1}{2}$ chain or thereabouts southward of the junction of Grove Vale with Constance Road:

Tramway No. 9A (3·4 chains or thereabouts in length whereof 1·4 chains or thereabouts will be double line and 2 chains or thereabouts will be single line) wholly in the said parish of Camberwell commencing in Grove Lane by a junction

A.D. 1911.

with the existing tramway at a point $\frac{1}{2}$ chain or thereabouts northward of Grove Hill Road and terminating in Grove Lane by a junction with the existing tramway at a point $2\frac{1}{2}$ chains or thereabouts southward of the junction of Grove Hill Road with Grove Lane :

Tramway No. 9B (2·4 chains or thereabouts in length whereof 1·4 chains or thereabouts will be double line and 1 chain or thereabouts will be single line) wholly in the said parish of Camberwell commencing by a junction with the existing tramway in Dog Kennel Hill at a point 2 chains or thereabouts northward of the junction of Dog Kennel Hill with Constance Road and terminating in Grove Vale by a junction with the existing tramway at a point $\frac{1}{2}$ chain or thereabouts southward of the junction of Grove Vale with Constance Road :

Tramway No. 10 (double line 1 furlong 9·2 chains or thereabouts in length) wholly in the parish and metropolitan borough of Lewisham commencing by a junction with the existing tramway in London Road at a point $\frac{1}{2}$ chain or thereabouts eastward of the junction of Havelock Street with London Road passing thence along London Road Devonshire Road Waldram Road and Park Road and terminating in the last-mentioned thoroughfare by a junction with Tramway No. 11 authorised by the London County Council (Tramways and Improvements) Act 1904 now in course of construction at a point opposite the eastern side of Westbourne Road :

Tramway No. 11 (double line 1 mile 6·7 chains or thereabouts in length) wholly in the said parish of Lewisham commencing in Stanstead Road by a junction with the said authorised Tramway No. 11 at a point $1\frac{1}{2}$ chains or thereabouts westward of the junction of Cranston Road and Stanstead Road passing thence along Stanstead Road Catford Hill and Catford Road to and terminating in Rushey Green by a junction with the existing tramway at a point $\frac{1}{2}$ chain or thereabouts south of the junction of Springfield Park Crescent with Rushey Green.

6. Subject to the provisions of this Act the Council may reconstruct (which expression where used in this Act includes the substitution of a double line of tramway for an existing

Reconstruction of existing tramways.

A.D. 1911. single line and the laying of the reconstructed tramway in a different position in the street from that occupied by the existing tramway) in the lines and according to the levels shown on the deposited plans and sections the tramway in Kingsland Road Dalston Lane Graham Road and Mare Street commencing in Kingsland Road by a junction with the existing tramway at a point $\frac{1}{2}$ chain or thereabouts southward of the junction of Balls Pond Road with Kingsland Road and terminating in Mare Street by a junction with the existing tramway at a point 1 chain or thereabouts northward of the junction of Graham Road with Mare Street. Provided that notwithstanding anything contained in this Act or shown on the deposited plans the Council may construct as a single line so much of the said tramway in Dalston Lane as lies between Roseberry Place and Woodland Street.

The said tramway when reconstructed will be situate in the parish of St. John Hackney and will be 7 furlongs 2·7 chains or thereabouts in length whereof 6 furlongs 6·7 chains or thereabouts will be double line and 6 chains or thereabouts will be single line.

Motive
power.

7. The carriages used on the tramways may be moved by animal power or (subject to the provisions of this Act) by electrical power.

As to system
of traction to
be adopted.

8. Nothing in this Act shall authorise the Council to place in any metropolitan borough any posts or wires in on or over any street for working the tramways by electrical power unless the council of such metropolitan borough shall by resolution have consented to the adoption therein of a system of traction conducted by means of posts and wires placed overhead.

Such consent may be subject to any limitations or conditions which may be expressed in the resolution and may apply to any particular streets or roads or fix any limited period defined by such resolution.

A copy of such resolution under the seal of the council of such metropolitan borough shall be delivered to the Council and shall be evidence of the due passing of such resolution.

Provided that no posts shall be placed in the centre of any road for the purpose of working any of the tramways by a system of traction conducted by means of posts and wires placed overhead without the consent of the Commissioner of Police of the Metropolis which consent shall not be unreasonably withheld.

9. The tramways shall be of the gauge of four feet eight and a half inches but carriages or trucks adapted for use upon railways shall not be run upon the tramways.

A.D. 1911.
Gauge of
tramways.

10. The sections of the London County Tramways (Electrical Power) Act 1900 of which the numbers and marginal notes are set forth in the First Schedule to this Act are hereby incorporated with and form part of this Part of this Act and shall extend and apply to the tramways and to the Council in respect thereof as fully and effectually as if those sections had been re-enacted in this Act with reference thereto.

Incorporating provisions of London County Tramways (Electrical Power) Act 1900 with this Part of Act.

11. If the Admiralty are of opinion that the generation or use of electrical energy under or for the purposes of this Act by the Council injuriously affects or is likely to injuriously affect any instrument or apparatus in or adjacent to the Royal Observatory at Greenwich including the magnetic pavilion or the efficient working of such instrument or apparatus the Admiralty may after such inspection and inquiry as they think proper require that the Council shall use such precautions including insulated returns as the Admiralty may deem necessary for the prevention of such injurious affection and the Council shall forthwith comply with such requisition. For the purpose of this section any person authorised in writing by the Admiralty shall have access at all reasonable times to the works and apparatus of the Council who shall give all due facilities for the inspection. Provided always that in the event of any instrument or apparatus hereafter used in the said Observatory which may be of a different character and of materially greater delicacy than those used therein at the passing of this Act the Admiralty shall consider and may in their discretion determine to what extent the powers of this section should be exercised regard being had to the interests of the public as well as to the purposes of the instruments or apparatus as the case may be. The Admiralty Suits Act 1868 shall apply for the purposes of proceedings in regard to any breach of the provisions of this section or for injurious affection of the said Observatory or instruments or apparatus.

For protection of Royal Observatory Greenwich.

12. Where in any part of any street or road (not being a part of a street or road described in the Second Schedule to this Act) which is by this Act authorised to be widened and in which the Council are by this Act authorised to make a new

Certain parts of tramways not to be used until streets widened.

A.D. 1911. tramway or to reconstruct an existing tramway a less space than nine feet six inches would for a distance of thirty feet or upwards intervene between the outside of the footpath and the nearest rail of the tramway the Council shall not work or use such tramway in such part of such street or road unless and until such part has been widened to such extent as may be necessary to leave a space of not less than nine feet six inches between the outside of the footpath and the nearest rail of the tramway on the side of the street or road on which such widening is to be made or unless it appears from the deposited plans that such tramway is intended to be so made or reconstructed in such part of the street or road that a less space than nine feet six inches will intervene between the outside of the footpath and the nearest rail of the tramway.

Tolls &c.

13. The tramways shall for the purpose of fixing and defining the tolls and charges to be levied and made in respect thereof be deemed to form part of the tramway undertaking of the Council.

Commissioner of Police may affix notices to standards.

14. The Commissioner of Police of the Metropolis may affix to tramway standards erected by the Council under this Act any notice required for the purposes of the Metropolitan Streets Acts or the Metropolitan Public Carriage Acts which the Commissioner is authorised by those Acts to attach to lamp-posts Provided that the Commissioner shall give notice in writing to the Council of his desire to affix any such notice and shall make compensation to the Council for any damage or injury which may result to the Council or their property by the affixing of any such notice Nothing in this section shall be deemed to require the Council to retain any tramway standard when no longer required for the purposes of the Council.

For protection of London Brighton and South Coast Railway Company.

15. For the protection of the London Brighton and South Coast Railway Company (in this section referred to as "the Brighton Company") the following provisions shall unless otherwise agreed between the Council and the Brighton Company apply and have effect (that is to say):—

(1) In this section the word "apparatus" includes posts brackets electric wires conductors apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the tramway and includes also any subways tunnels tubes

openings excavations channels and pipes for the purposes of such apparatus: A.D. 1911.

- (2) Notwithstanding anything contained in this Act or shown on the deposited plans the Council shall not purchase or acquire any part of the property of the Brighton Company which lies eastward of the dotted red line on a plan which has been signed in duplicate by the Right Honourable Lord Welby the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred other than the portion coloured green on the said plan One copy of the said plan has been deposited in the Office of the Clerk of the Parliaments in the House of Lords and one copy in the Private Bill Office of the House of Commons:
- (3) The Council shall purchase and acquire from the Brighton Company the whole of the property coloured green on the said plan being the properties numbered on the deposited plans 18 19 and 20 in the metropolitan borough of Lewisham but shall as soon as reasonably practicable re-convey to the Brighton Company free of cost to the Brighton Company so much thereof as lies to the eastward of the said dotted red line:
- (4) All works in connexion with Tramway No. 10 by this Act authorised (in this section referred to as "the said tramway") where the same will be made under the bridge carrying the railway of the Brighton Company over Waldram Road in the metropolitan borough of Lewisham or will in any manner affect the said bridge or any of the lands works or property of the Brighton Company shall be executed so as to interfere as little as possible with the structure of the said bridge or works and according to plans sections and specifications to be previously submitted to and reasonably approved by the Brighton Company or in case of difference between the Brighton Company and the Council by a referee to be appointed as herein-after provided All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved or

A.D. 1911.

determined and under the superintendence and to the reasonable satisfaction of the Brighton Company The Council shall so construct maintain and use the said tramway works and apparatus as not to injuriously affect the said bridge or other works of the Brighton Company and in the event of any injury being occasioned to the said bridge or works by the construction maintenance user or removal of the tramway works and apparatus under the same the Brighton Company may make good the injury and may recover from the Council the reasonable expenses of so doing:

- (5) The Council in altering the levels of Devonshire Road and Waldram Road in the metropolitan borough of Lewisham shall execute the same so as to permit of the future widening of the railway of the Brighton Company thereover by the addition of two lines of rails one on the east and the other on the west side of the existing bridge:
- (6) Notwithstanding anything in this Act or any Act incorporated therewith the Council shall not without the previous consent in writing of the Brighton Company which consent shall not be unreasonably withheld deviate in the construction of the said tramway where the same will pass under the said bridge or where the same will pass in front of the Forest Hill Station of the Brighton Company from the lines and levels shown on the deposited plans and sections except so far as shall be necessary to comply with the last preceding subsection:
- (7) The Council shall on demand pay to the Brighton Company the reasonable expense of lighting and watching the railway and works of the Brighton Company during the execution or repair by the Council under this Act of any work or apparatus affecting the said bridge or other work belonging to the Brighton Company or their lands or property for the purpose of preventing interference obstruction danger and accident from any of the operations or from the acts or defaults of the Council or their contractors or any person in the employ of either of them or otherwise:

(8) The Council shall not in any manner in the execution maintenance user or repair of any of their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the Brighton Company or any traffic thereon : A.D. 1911.

(9) The Council shall be responsible for and make good to the Brighton Company all losses damages and expenses which may be occasioned to the Brighton Company or to any company or person using their railways works or property by or by reason of the execution or failure of any of the intended works or apparatus or by or by reason of any act default or omission of the Council or of any person in their employ or of any contractors for the intended works or any part thereof and the Council shall effectually indemnify and hold harmless the Brighton Company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :

(10) If the Brighton Company hereafter require to widen lengthen strengthen reconstruct alter repair lift or support the said bridge the Council shall afford to the Brighton Company all reasonable and proper facilities for the purpose and if the Brighton Company find it necessary for such purpose that the working or user of any part of the said tramway under the said bridge be wholly or in part stopped or delayed or that such part of the said tramway be wholly or in part taken up or removed and if the Brighton Company accordingly give to the Council fourteen days' notice in writing or in case of emergency such notice as may be reasonably practicable requiring such stoppage delay taking up or removal then the working or user of such part of the said tramway shall be stopped or delayed or such part of the said tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Council and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period

A.D. 1911.

than may be necessary for effecting such purpose as aforesaid and such part of the said tramway shall be restored with all possible despatch and in such case the Brighton Company shall not be liable to pay compensation in respect of such stoppage delay taking up or removal as aforesaid. Provided that if the said tramway is constructed as a double line the Brighton Company shall not be at liberty to require more than one line of rails to be stopped at a time or if the said tramway is constructed as a single line the Brighton Company shall give the Council all reasonable facilities for the construction and user of a temporary line to be laid under the said bridge for maintaining the tramway service:

- (11) The Council shall from time to time pay to the Brighton Company any additional expense which the Brighton Company may incur in effecting such widening lengthening strengthening reconstruction altering repairing lifting or supporting as is mentioned in the last preceding subsection or in the maintenance of the said bridge or other work of the Brighton Company by reason of the existence or user of the tramway or any of the works or apparatus connected therewith:
- (12) No apparatus shall be affixed to the said bridge or other property of the Brighton Company without their consent in writing which consent shall not be unreasonably withheld:
- (13) If having regard to the proposed position of any of the works of the Council by this Act authorised when considered in relation to the position of the works of the Brighton Company at any point where the said tramway will be constructed under the said bridge it becomes necessary in order to obviate interference by the currents to be used for working the said tramway that the electric telegraphic telephonic or signal wires or apparatus of the Brighton Company shall be cabled or otherwise altered or return wires added the Brighton Company may after giving fourteen days' notice to the Council or in case of emergency such notice as may be reasonably practicable execute

any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Council: A.D. 1911.

(14) Where the said tramway will pass in front of the up-side entrance to the Forest Hill Station of the Brighton Company no crossing or passing-place siding junction turnout or other work shall without the consent of the Brighton Company be made for or in connexion therewith for the distance between the points marked A—A and B—B on the said plan and without such consent no carriage used on the said tramway shall be stopped or permitted to be stopped within such distance:

(15) If any difference arises under this section between the Council and the Brighton Company the same shall unless otherwise agreed be determined by a referee in accordance with the provisions of section 33 of the Tramways Act 1870.

16. For the protection of the South Eastern Railway Company the London Chatham and Dover Railway Company and the South Eastern and Chatham Railway Companies Managing Committee (in this section collectively referred to as "the company") the following provisions shall unless otherwise agreed between the Council and the company apply and have effect (that is to say):—

For protection of South Eastern and Chatham Railway Companies.

(1) In this section the word "apparatus" includes posts brackets electric wires conductors apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the tramway and includes also any subways tunnels tubes openings excavations channels and pipes for the purposes of such apparatus:

(2) All works in connexion with the construction of Tramway No. 11 (in this section referred to as "the said tramway") by this Act authorised where the same will be made upon or under any bridge or other work belonging to or maintained by or at the cost of the company or will otherwise affect the same shall be executed so as to interfere as little as possible with the structure of any such bridge or other work and according to plans sections and specifications to

A.D. 1911:

be previously submitted to and approved by the company or in case of difference between them and the Council to be determined by a referee to be appointed as herein-after provided All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved or determined and under the superintendence and to the satisfaction of the company The Council shall so construct maintain and use the said tramway as not to injuriously affect any such bridge or other work and in the event of any injury being occasioned to such bridge or other work by the construction maintenance user or removal of the said tramway works and apparatus the company may make good the injury and may recover from the Council the reasonable expense of so doing :

(3) The Council shall on demand pay to the company the reasonable expense of lighting and watching the works of the company during the execution repair or removal by the Council under this Act of any work or apparatus affecting any bridge or other work belonging to the company for the purpose of preventing interference obstruction danger and accident from any of the operations or from the acts or defaults of the Council or their contractors or any person in the employ of either of them or otherwise :

(4) The Council shall not in any manner in the execution maintenance user or removal of any of their works obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the company or any traffic thereon :

(5) The Council shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the intended works or apparatus or by or by reason of any act default or omission of the Council or of any person in their employ or of any contractors for the intended works or any part thereof and the Council

shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission: A.D. 1911.

(6) If the company hereafter require to widen strengthen reconstruct alter or repair any such bridge or other work of the company upon or under which the said tramway is laid or to lift or support such bridge the Council shall afford to the company all reasonable and proper facilities for the purpose and if the company find it necessary for such purpose that the working or user of any part of the said tramway upon or under such bridge be wholly or in part stopped or delayed or that such part of the said tramway be wholly or in part taken up or removed and if the company accordingly give to the Council fourteen days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the said tramway shall be stopped or delayed or such part of the said tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Council and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the said tramway shall be restored with all possible despatch and in such case the company shall not be liable to pay compensation in respect of such stoppage delay taking up or removal as aforesaid. Provided that if the said tramway is constructed as a double line the company shall not be at liberty to require more than one line of rails to be stopped at a time or if the said tramway is constructed as a single line the company shall give to the Council all reasonable facilities for the construction and use of a temporary line to be laid for maintaining the tramway service:

(7) If having regard to the proposed position of any of the works of the Council by this Act authorised when

A.D. 1911.

considered in relation to the position of the works of the company at any point where the said tramway will be constructed over or under the railway or other works of the company it becomes necessary that the electric telegraphic telephonic or signal wires or apparatus of the company shall be cabled or otherwise altered or return wires added the company may after giving fourteen days' notice to the Council execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Council:

(8) If under the powers of this Act a shelter or waiting-room is erected under or upon any bridge of the company the Council shall repay to the company any extra cost reasonably incurred by the company when maintaining or renewing such bridge due to the erection of the shelter or waiting-room under or upon such bridge but before commencing any such work the company shall give to the Council fourteen days' notice thereof or in case of emergency such notice as may be reasonably practicable:

(9) If any difference arises under this section between the Council and the company the same shall unless otherwise agreed be determined by a referee in accordance with the provisions of section 33 of the Tramways Act 1870.

As to construction of portion of Tramway No. 11.

17. For the protection of the governors of the foundation known as the St. Dunstan's Educational Foundation the following provisions shall unless otherwise agreed apply and have effect (that is to say):—

In constructing Tramway No. 11 by this Act authorised the Council shall pave with wood paving the whole of the roadway between the kerbs in front of the main building situate upon the property numbered on the deposited plans 98 in the metropolitan borough of Lewisham (being a length of 230 feet) and the Council shall so far as practicable remove and transplant to the reasonable satisfaction of the said governors any trees and shrubs growing upon the portion of the said property acquired by them under the powers of this Act in such position in the

remainder of the said property as the said governors may reasonably direct or if the said governors so desire they may forthwith upon being requested so to do themselves cause such trees and shrubs to be removed and transplanted and in such case the Council shall repay to the said governors the amount reasonably expended by them in so doing : A.D. 1911.

The wood paving on the said portion of roadway shall at all times be maintained and kept in good condition and repair.

18. The following provisions for the protection of the North London Railway Company (in this section referred to as "the company") shall unless otherwise agreed between the Council and the company have effect (that is to say) :—

For protection of North London Railway Company.

(1) In this section the word "apparatus" includes posts brackets electric wires conductors and any similar appliances to be used as and for the purposes of a motive power for the carriages running on the tramways and includes also any subways tunnels tubes openings excavations channels and pipes for the purposes of such apparatus :

(2) Notwithstanding anything contained in this Act or shown on the deposited plans the Council shall not without the consent in writing of the company enter upon take or use any of their lands or property in Dalston Lane but the Council may purchase and take and the company shall if so required by the Council sell and grant an easement or right of using so much only of the lands and property of the company as they may require for the widening of Dalston Lane within the line shown on the deposited plans and described as "extent of widening" and for the purposes of the taking of such easement the provisions of the Lands Clauses Acts shall apply as if such taking were a purchase of lands under the provisions of those Acts :

(3) All works in connexion with the reconstruction of the existing tramways in Dalston Lane (in this section referred to as "the said tramway") where the same shall be made upon across or over or in any way affecting any bridge or other work belonging to the

A.D. 1911.

company shall be executed so as to interfere as little as possible with the structure of any such bridge or other work and according to plans sections and specifications to be previously submitted to and approved by the company or in case of difference between them and the Council to be determined by a referee to be appointed as herein-after provided. All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved or determined and under the superintendence and to the reasonable satisfaction of the company. In the event of any injury being occasioned to such bridge or work by any works of the Council by this Act authorised the company may make good the injury and may recover from the Council the reasonable expenses of so doing:

- (4) If by reason of the reconstruction of the said tramway over any such bridge it becomes necessary in the opinion of the company to strengthen or alter the same such strengthening or alteration shall be executed by the Council in accordance with plans sections and specifications to be submitted to the company and approved by them and the costs and expenses of and incidental to such strengthening or alteration shall be borne by the Council. Such bridge when strengthened or altered shall be and remain the property of the company and shall be maintained by them as part of their railway and works and the Council shall upon the completion of the works to be executed by them pay to the company such a sum as shall be agreed between the company and the Council or determined by a referee appointed as herein-after provided by way of composition for and in satisfaction of all claims by the company in respect of any additional expense of maintaining such bridge arising from any increase in width or alteration in the form of construction effected by the Council:

- (5) The Council shall on demand pay to the company the reasonable expense of lighting and watching the works of the company during the execution by the Council under this Act of any work affecting any such bridge

for preventing so far as may be any interference A.D. 1911.
obstruction danger and accident from any of the
operations or from the acts or defaults of any person
in the employ of the Council with reference thereto
or otherwise:

- (6) The Council shall not in any manner in the execution maintenance user or repair of any of their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the company or any traffic thereon:
- (7) The Council shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the intended works or apparatus or by reason of any act default or omission of the Council or of any person in their employ or of any contractors for the intended works or any part thereof and the Council shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission:
- (8) If the company hereafter require to widen lengthen strengthen reconstruct alter or repair any such bridge upon across or over which the said tramway is laid or to lift or support any such bridge the Council shall afford to the company all reasonable and proper facilities for the purpose and if the company find it necessary for such purpose that the working or user of any part of the said tramway upon such bridge be wholly or in part stopped or delayed or that such part of the said tramway be wholly or in part taken up or removed and if the company accordingly give to the Council fourteen days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the said tramway shall be stopped or delayed or such part of the said tramway shall be taken up or

A.D. 1911.

removed as stated in such notice at the reasonable expense of the Council and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the said tramway shall be restored with all possible despatch and in such case the company shall not be liable to pay compensation in respect of such stoppage delay or taking up or removal as aforesaid. Provided that if the said tramway is constructed as a double line the company shall not be at liberty to require more than one line of rails to be stopped at a time or if the said tramway is constructed as a single line the company shall give to the Council all reasonable facilities for the construction and user of a temporary line to be laid on such bridge for maintaining the tramway service:

- (9) The Council shall from time to time pay to the company any additional expense which the company may incur in effecting such widening lengthening strengthening reconstructing altering repairing lifting or supporting as is mentioned in the last preceding subsection by reason of the existence or user of the said tramway or any of the works or apparatus connected therewith:
- (10) If having regard to the proposed position of any works of the Council by this Act authorised when considered in relation to the position of the works of the company at any point where the said tramway will be reconstructed over the railway or other works of the company it becomes necessary that the electric telegraphic telephonic or signal wires or apparatus of the company shall be cabled or otherwise altered the company may after giving fourteen days' notice to the Council execute any works reasonably necessary for such alteration and the reasonable expense thereof shall be borne by the Council:
- (11) If and when the company require to repair or paint any bridge over which the said tramway is laid the Council shall in order to ensure the safety of the

workmen employed in such repairing or painting cut off the electric current from their apparatus for working by electricity the said tramway at such times as shall be reasonably required by the company unless the Council shall have previously adopted some other means of protection to workmen which shall have been approved by the company: A.D. 1911.

(12) If the access to any of the stations or depôts of the company is affected during and by the reconstruction of the said tramway the Council shall provide such temporary means of access to such stations or depôts as the company may reasonably require:

(13) Where the said tramway will pass in front of the entrances to any passenger or goods stations of the company no carriage used on the said tramway shall without the consent of the company be stopped or permitted to be stopped within the distance thereon extending in front of the said entrances to such stations and for a length of ten yards at each end of such distance except only for so long as shall be reasonably necessary for the purposes of discharging and taking up passengers:

(14) If any difference arises under this section between the Council and the company the same shall be determined by a referee in accordance with the provisions of section 33 of the Tramways Act 1870.

19. For the protection of the Great Eastern Railway Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed between the Council and the company apply and have effect (that is to say):—

For protection of Great Eastern Railway Company.

(1) In this section the word "apparatus" includes posts brackets electric wires conductors apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the tramway and includes also any subways tunnels tubes openings excavations channels and pipes for the purposes of such apparatus:

(2) The Council shall not without the consent in writing of the company under their common seal enter upon take or use permanently any lands railways sidings

A.D. 1911.

or other property belonging to the company at the date of the deposit of the deposited plans:

(3) All works in connexion with the reconstruction of the tramway in Graham Road (in this section referred to as "the said tramway") by this Act authorised where the same will be made under any bridge or other work belonging to the company or will otherwise affect the same shall be executed so as to interfere as little as possible with the structure of any such bridge or other work and according to plans sections and specifications to be previously submitted to and approved by the company or in case of difference between them and the Council to be determined by a referee to be appointed as herein-after provided All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved or determined and under the superintendence and to the satisfaction of the company The Council shall so reconstruct maintain and use the said works as not to injuriously affect any such bridge or other work and in the event of any injury being occasioned to such bridge or other work by the reconstruction maintenance user or removal of the said tramway works and apparatus the company may make good the injury and may recover from the Council the reasonable expense of so doing:

(4) The Council shall not in any manner in the execution maintenance user or removal of any of their works obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the company or any traffic thereon:

(5) The Council shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the intended works or apparatus or by or by reason of any act default or omission of the Council or of any person in their employ or of any contractors for the intended works or any part thereof and the Council shall effectually indemnify and hold harmless the

company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission : A.D. 1911.

(6) Whenever and so often as the company shall require to widen strengthen reconstruct alter or repair any such bridge or other work of the company under which the said tramway is laid or to lift or support such bridge the Council shall afford to the company all reasonable and proper facilities for the purpose and if the company find it necessary for such purpose that the working or user of any part of the said tramway under the bridge be wholly or in part stopped or delayed or that such part of the said tramway be wholly or in part taken up or removed and if the company accordingly give to the Council fourteen days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the said tramway shall be stopped or delayed or such part of the said tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Council and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the said tramway shall be restored with all possible despatch and in such case the company shall not be liable to pay compensation in respect of such stoppage or delay or taking up or removal as aforesaid Provided that if the said tramway is reconstructed as a double line the company shall not be at liberty to require more than one line of rails to be stopped at a time or if the said tramway is reconstructed as a single line the company shall give to the Council all reasonable facilities for the construction and use of a temporary line to be laid for maintaining the tramway service :

(7) No apparatus shall be affixed to any bridge or other property belonging to the company without their previous consent in writing which consent shall not be unreasonably withheld :

A.D. 1911.

- (8) If and when the company shall require to reconstruct alter repair or paint the bridge under which any apparatus of the Council has been placed the Council shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under the bridge at such times as shall be reasonably required by the company unless the Council shall have previously adopted some other means of protection to workmen which shall have been approved by the company:
- (9) Where the said tramway will pass in front of the entrances to the Graham Road Goods Depôt of the company no crossing or passing place siding junction turnout or other work shall be made for or in connexion therewith for the distance thereon extending in front of the said entrances to such depôt and for a length of ten yards at each end of such distance without the consent of the company and without such consent no carriage used on the tramway shall be stopped or permitted to be stopped within such distance and lengths except for the purpose of taking up or discharging passengers:
- (10) If any difference shall arise under this section between the Council and the company the same shall unless otherwise agreed be determined by a referee in accordance with the provisions of section 33 of the Tramways Act 1870.

PART III.

STREET WORKS.

Power to
Council to
make street
works.

20.—(1) Subject to the provisions of this Act the Council may in the lines or situation and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections make and execute the street improvements widenings and works herein-after described (viz.):—

Widenings at London Road Devonshire Road and Waldram Road.

A widening of London Road in the parish and metropolitan borough of Lewisham on the northern side thereof between

Devonshire Road and a point 1 chain or thereabouts westward thereof. A.D. 1911.

Widenings of Devonshire Road in the said parish of Lewisham:—

On the western side thereof—

(1) Between London Road and a point 2 chains or thereabouts northward thereof;

(2) Between David's Road and a point opposite the northern side of Waldram Road:

On the eastern side thereof between London Road and a point $3\frac{1}{2}$ chains or thereabouts northward thereof.

A widening of Waldram Road in the said parish of Lewisham on the southern side thereof between points respectively 1 chain or thereabouts and 2 chains or thereabouts eastward of Devonshire Road.

Widenings at Stanstead Road Catford Hill and Catford Road.

Widenings of Stanstead Road in the parish and metropolitan borough of Lewisham:—

On the northern side thereof—

(1) Between Brockley Rise and a point $1\frac{1}{2}$ chains or thereabouts west of Park Rise Road;

(2) Between Montem Road and a point $\frac{1}{2}$ chain or thereabouts east of Carholme Road;

(3) Between Blythe Hill Lane and a point $\frac{1}{2}$ chain or thereabouts eastward thereof;

(4) Between the western side of Stanstead Grove and a point 3 chains or thereabouts eastward of Faversham Road;

(5) Between Catford Hill and a point 8 chains or thereabouts westward thereof:

On the southern side thereof—

(1) Between Elsinore Road and a point 1 chain or thereabouts eastward of Northwood Road;

(2) Between Carholme Road and a point 2 chains or thereabouts westward of Blythe Vale;

(3) Between points respectively 3 chains or thereabouts and $6\frac{1}{2}$ chains or thereabouts westward of Catford Hill.

A.D. 1911.

Widenings of Catford Hill in the said parish of Lewisham:—

On the north-western side thereof between Stanstead Road and a point $\frac{1}{2}$ chain or thereabouts eastward thereof;

On the south-eastern side thereof between the western side of the bridge carrying the London Chatham and Dover Railway over Catford Hill and a point 1 chain or thereabouts westward of the junction of Stanstead Road.

A widening of Catford Road in the said parish of Lewisham on the southern side thereof between Berlin Road and a point $4\frac{1}{2}$ chains or thereabouts eastward thereof.

Widenings at Dalston Lane and Graham Road.

Widenings of Dalston Lane in the parish of St. John Hackney in the metropolitan borough of Hackney:—

On the northern side thereof between Kingsland High Street and a point 1 chain or thereabouts westward of Ashwin Street;

On the southern side thereof between Roseberry Place and a point $3\frac{1}{2}$ chains or thereabouts westward thereof.

Widenings of Graham Road in the said parish of St. John Hackney:—

On the northern side thereof—

(1) Between Navarino Road and a point 1 chain or thereabouts westward thereof;

(2) Between a point 2 chains or thereabouts westward of Marvin Street and a point $2\frac{1}{2}$ chains or thereabouts westward of Mare Street:

On the southern side thereof between Navarino Road and a point 1 chain or thereabouts eastward thereof.

(2) The Council may at the places mentioned or described in the Second Schedule to this Act increase the width of the carriageway of the several streets or roads therein mentioned by reducing the width of the footpath or footpaths at the side or sides thereof to the extent shown on the deposited plans but the Council shall not in exercising the powers of this subsection reduce the width of any footpath to less than six feet.

21. Subject to the provisions of this Act the Council may to the extent shown on the deposited plans and sections alter the levels of the following public carriage roads between the following points (viz.) :—

A.D. 1911.
Alteration of
levels.

- (1) So much of Devonshire Road and Waldram Road in the parish and metropolitan borough of Lewisham as lies between points respectively $3\frac{1}{2}$ chains or thereabouts westward and $1\frac{1}{2}$ chains or thereabouts eastward of the centre of the bridge carrying the London Brighton and South Coast Railway over Waldram Road :
- (2) So much of David's Road in the said parish of Lewisham as is situate between its junction with Devonshire Road and a point 4 chains or thereabouts north-westward of that point :
- (3) So much of Catford Hill in the said parish of Lewisham as lies between points respectively $1\frac{1}{2}$ chains or thereabouts south-westward and 1 chain or thereabouts north-eastward of the centre of the bridge carrying the London Chatham and Dover Railway over Catford Hill.

22. The provisions of the London County Council (Subways) Act 1893 shall extend and apply to any subway to be constructed under the powers of this Act as well during as after the construction thereof as if such subway had been included in the expression "subway" in the first-mentioned Act and all byelaws for the time being in force thereunder shall extend and apply to such subway :

Applying
provisions
of London
County
Council
(Subways)
Act 1893.

Provided that for the purposes of the application of the London County Council (Subways) Act 1893 to such subway the Metropolitan Water Board and the London Hydraulic Power Company shall be deemed to be water companies.

23. When and as each of the improvements or any part thereof is completed a certificate thereof shall be issued under the seal of the Council and any copy of such certificate certified under the hand of the clerk of the Council shall in all proceedings and for all purposes be admissible and received as evidence that such certificate has been duly made and from the date of such certificate so much of the improvement to which such certificate relates as shall have been laid out as carriageway or

Improve-
ments to
form public
streets
repair &c.

A.D. 1911. footway shall form part of the street and may be used by the public accordingly Subject to the provisions of this Act so much of the land acquired by the Council for any improvement as is thrown into and used for the carriageway or footway of any street shall on the completion of the improvement (subject to the enjoyment by the council of the metropolitan borough in which the same is situate of all such rights in such lands as are usually enjoyed in respect of a street by the road authority) be and remain vested in the Council and the maintenance repair paving cleansing and lighting of so much of the improvement as has been laid out as aforesaid shall be under the care management control and jurisdiction of the council of the metropolitan borough in which such improvement is situate in the same manner as other streets in such borough:

Provided that the provisions of this section with reference to the repair of carriageway shall not apply to that part of any carriageway which under the provisions of the Tramways Act 1870 the Council are bound to keep in repair.

Contribution
by Lewisham
Borough
Council.

24. The council of the metropolitan borough of Lewisham shall and they are hereby empowered and required from time to time to contribute towards the costs and expenses of the Council in relation to the street widenings at London Road Devonshire Road Waldram Road Stanstead Road Catford Hill and Catford Road such sums on account of such costs and expenses as the Council may from time to time require to the extent of but not exceeding one-third of the net cost thereof or the sum of twenty-nine thousand three hundred and sixty-seven pounds whichever shall be the less.

The said metropolitan borough council may for the purpose of paying any such contribution or any part thereof borrow the requisite moneys.

For the purpose of securing the repayment with interest of any moneys to be borrowed as aforesaid the said metropolitan borough council may mortgage and assign any moneys or rates authorised to be raised by them under the Metropolis Management Act 1855 as amended by any subsequent Act and any such borrowing under the powers of this section shall be subject in all respects to the provisions of sections 183 to 189 of the Metropolis Management Act 1855 as amended by any subsequent Act.

There shall be chargeable upon this Act a stamp duty of the same amount as would have been chargeable upon an instrument (as defined by the Stamp Act 1891) made under the seals of the said metropolitan borough council and the Council providing for the payment to the Council by the said metropolitan borough council in the manner prescribed by this section of such contribution (limited as herein-before mentioned) as may be required to be paid to the Council by the said metropolitan borough council hereunder and the Council shall within six months after the passing of this Act produce to the Commissioners of Inland Revenue a King's Printers' copy of this Act stamped with such duty and in default of such production the amount of such duty with interest thereon computed from the expiration of the said six months at the rate of five per centum per annum shall become a debt due to His Majesty and recoverable from the Council.

A.D. 1911.

25. A separate account shall (if and so far as may be necessary) be kept in relation to the costs and expenses of the improvements referred to in the last preceding section of this Act and for the purpose of ascertaining the sums to be paid to the Council under the provisions of the said section by the council of the metropolitan borough of Lewisham the Council shall notwithstanding the provisions of the Metropolitan Board of Works (Loans) Act 1869 or any other Act carry to the said account all sums of money which may from time to time be paid to the Council under the provisions of this Act on account of the said improvements whether such sums arise from the sale of materials or the sale or letting of lands or any other sums which recoup the Council part of the expenses incurred by them in carrying this Act into execution with respect to the said improvements and shall furnish to the said metropolitan borough council a copy of the account relative to the said improvements.

Accounts of receipts and payments.

PART IV.

PURCHASE OF LANDS.

26.—(1) Subject to the provisions of this Act the Council may enter upon take and use all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of the improvements or for providing space for the erection of houses

Power to Council to take lands.

A.D. 1911. and buildings adjoining or near to the improvements or for the purposes of recoupment or exchange or for other purposes of this Act.

(2) The powers of the Council for the purchase of lands by agreement shall be deemed to extend to and to authorise the purchase by the Council by agreement of any other lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be required by them for the purposes of or in connexion with the improvements.

Power to
Council to
acquire addi-
tional lands.

27. Subject to the provisions of this Act the Council may enter upon take and use for the purposes of or in connexion with their tramway undertaking the lands herein-after described and delineated on the deposited plans and described in the deposited book of reference (that is to say):—

Lands in the parish and metropolitan borough of Camberwell adjoining the Council's Camberwell Tramway Depot on the southern side thereof and being the northern corner of the playground attached to St. Matthew's School Camberwell New Road.

Purchase of
lands by
agreement.

28. In addition to the lands shown on the deposited plans and described in the deposited book of reference the Council may purchase by agreement in connexion with and for the purposes of the improvements any lands not exceeding in the whole five acres.

Compensa-
tion under
this Part of
Act in case
of recently
altered build-
ings.

29. In settling any question of disputed purchase money or compensation under this Part of this Act the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the lands created after the twenty-sixth day of July one thousand nine hundred and ten if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

As to taking
of part of
certain pro-
perties.

30. The Council may in connexion with the improvements or otherwise in exercise of the powers of this Act take the parts of the several properties shown on the deposited plans and

described in the deposited book of reference under the numbers stated in the Third Schedule to this Act which lie within the line marked limits of deviation or such part thereof as they may require without being required or compellable to purchase any greater part or the whole of any such property : A.D. 1911.

Provided that this section shall not entitle the Council to take or interfere with the main structure of any house building or manufactory.

The provisions of this section shall be stated in every notice given thereunder by the Council to sell and convey any premises.

31. The powers of the Council for the compulsory purchase or taking of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Limitation of time for purchase of lands.

PART V.

EXTENSIONS OF TIME.

32. The time limited by the London County Council (Tramways and Improvements) Act 1906 for the construction of Tramway No. 10 described in and authorised by that Act is hereby extended till the fourth day of August one thousand nine hundred and fourteen. Extension of time for construction of tramway under Act of 1906.

33. The time limited by the London County Council (Tramways and Improvements) Act 1908 for the compulsory purchase of lands in the parish of Wandsworth Borough in the metropolitan borough of Wandsworth described in section 26 of that Act is hereby extended till the expiration of two years from the date of the passing of this Act. Extension of time for purchase of lands under Act of 1908.

PART VI.

MISCELLANEOUS AND FINANCIAL.

34. If the works be not completed within the period of seven years from the passing of this Act then on the expiration of that period the powers of the Council under this Act for the execution of the same respectively shall cease except so far as the same shall then have been completed. Period for completion of works.

A.D. 1911.

Incorporating certain provisions of London County Council (Tramways and Improvements) Acts 1901 and 1907 with various Parts of Act.

35. The sections of the London County Council (Tramways and Improvements) Act 1901 and of the London County Council (Tramways and Improvements) Act 1907 of which the numbers and marginal notes are respectively set forth in the second and third columns of the Fourth Schedule to this Act are hereby incorporated with and form part of the Parts of this Act of which the numbers are respectively set opposite to the said sections in the first column of the said schedule and the said sections shall so far as applicable extend and apply to the works and to the lands by this Act authorised to be acquired by the Council and to the Council in respect thereof as fully and effectually as if such sections had been re-enacted in this Act with reference thereto :

Provided that for the purposes of the incorporated sections 48 and 49 of the said Act of 1901 the Metropolitan Water Board shall be deemed to be a company :

Provided also that section 17 of the London County Council (Tramways and Improvements) Act 1907 shall extend and apply to the tramway the time for the construction of which is extended by Part V. of this Act :

Provided further that in its application to the new tramways section 11 of the said Act of 1901 shall be read and construed as if the words "or by the Commissioner of Police of the Metropolis" had been inserted therein after the words "twenty inhabitant ratepayers of such district."

Power to Council to erect and maintain shelters or waiting-rooms.

36.—(1) The Council may erect and maintain shelters or waiting-rooms for the accommodation of passengers in connexion with any of the tramways of the Council and may with the consent of the road authority and subject to such reasonable terms and conditions as may be agreed between the Council and the road authority use for that purpose portions of the streets and the Council may maintain any such shelters or waiting-rooms which have already been erected by them :

The Council shall in all cases consult the Commissioner of Police of the Metropolis before erecting any such shelter or waiting-room and shall have due regard to the convenience of the general traffic.

(2) The Council may make and enforce byelaws with reference to the regulation use and management of any such shelters or waiting-rooms and such byelaws shall be subject to

the provisions of the Metropolis Management Act 1855 respecting the making confirmation approval publication and evidence of byelaws. A.D. 1911.

(3) No shelters or waiting-rooms shall be erected or maintained under the powers given by this Act opposite to any land or building vested in or under the control of His Majesty's Principal Secretary of State for the War Department or the Commissioners of Works without the previous consent in writing of the said Secretary of State or of the Commissioners of Works or of an officer acting on his or their behalf as the case may be.

(4) Nothing in this section shall authorise the Council to erect and maintain any such shelters or waiting-rooms upon the Victoria Embankment to the south of the land vested in the respective trustees of the societies of the Inner Temple and the Middle Temple or in any way to interfere with the access to their private landing-place without the consent in writing of the treasurers for the time being of the two societies respectively.

37. Notwithstanding anything contained in the section of this Act the marginal note whereof is "Power to Council to erect and maintain shelters or waiting-rooms" no shelter or waiting-room shall be erected or maintained in any street or road so as to interfere with or render less convenient the access to or exit from any station of any railway company. For protection of railway companies.

Any difference arising under this section shall be determined by an arbitrator to be agreed upon by both parties or failing such agreement to be appointed by the Board of Trade on the application of either party.

38. The Council may purchase take on lease or acquire by agreement and may hold any lands buildings or other property or any easements under the same which they may think desirable in order to provide sites for any shelters or waiting-rooms to be erected or made under the provisions of this Part of this Act and the Council may for the like purpose appropriate and use any lands which are for the time being vested in them for any other purpose but any lands vested in them for the purposes of the Education Acts 1870 to 1910 shall only be so appropriated and used in accordance with the provisions of the Education (Administrative Provisions) Act 1909. Purchase &c. and appropriation of lands for shelters &c.

39. The Council and any other body or person may enter into and carry into effect agreements with reference to the erection maintenance and use of any shelters or waiting-rooms. Agreements with respect to shelters &c.

A.D. 1911.

Agreements
as to through
booking &c.

40. The Council on the one hand and any company owning or working underground electric railways in London having stations on the route of or near to any of the Council's tramways on the other hand may enter into and carry into effect agreements for and with respect to the interchange transmission and delivery of traffic coming from or destined for the Council's tramways or the railway of any such railway company and the issue of through tickets and the fixing of through fares tolls and charges to be demanded and recovered in respect of such traffic and the division and apportionment of the receipts arising therefrom.

Attachment
of signs indi-
cating stop-
ping places
to lamp-posts
&c.

41. The Council may attach to any lamp-posts poles standards or other similar erections erected on or in the highway on or near to the route of any of their tramways signs or directions indicating the position of stopping places for cars running on such tramways. Provided that the Council shall give notice in writing to the owner of any such lamp-post pole standard or similar erection of their intention to attach thereto any such sign or direction and shall make compensation to the said owner for any damage or injury occasioned to such lamp-post standard or similar erection by such attachment and the Council shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment:

Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes:

Provided also that the Council shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

Charges for
passengers'
luggage.

42. Every passenger travelling upon any of the Council's tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof all such luggage to be carried by hand and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers and in respect of luggage accompanied by a passenger other than as aforesaid the Council may make and recover such charges as they think fit for the conveyance thereof.

Power to
reserve cars
for special
purposes.

43. Notwithstanding anything contained in any Act to the contrary the Council may run and reserve cars on any of their tramways for the conveyance of women or for any other special

purpose which the Council may consider necessary or desirable and the Board of Trade may make byelaws and regulations for prohibiting the use of any such cars by any persons other than those for whose conveyance such cars are reserved. A.D. 1911.

44. Nothing in this Act shall be held to restrict or interfere with the exercise by the Commissioner of Police of the Metropolis of the powers conferred on him by the Acts relating to public carriages in the Metropolitan Police District. Saving of powers of Commissioner of Police.

45.—(1) The Council may expend on capital account for the purposes of Parts II. III. and IV. of this Act such money as they may from time to time think fit not exceeding two hundred and sixty-four thousand one hundred and sixty pounds and such further sum as may be required for the purposes of Part VI. of this Act and in order to raise or provide the money required for those purposes the Council may create and issue consolidated stock or resort to the consolidated loans fund or otherwise raise money in accordance in each case with the provisions of the Acts for the time being in force regulating the raising of money for capital purposes by the Council : Money to be raised on capital account.

Provided that nothing in this Act shall authorise the borrowing and expenditure of any money on capital account after the thirtieth day of September one thousand nine hundred and twelve.

(2) The Council in accordance with the provisions of the Acts relating to the raising and expenditure of money by the Council on capital account shall make provision for the redemption of stock or the repayment of money borrowed or expended on capital account for the purposes of this Act within such term not exceeding in any case sixty years as the Council with the consent of the Treasury may determine.

46. All costs and expenses of the Council in the execution of this Act (except so far as they may be otherwise provided for by this or any other Act) shall be defrayed as payments for general or special county purposes within the meaning of the Local Government Act 1888 as the Council may decide and the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the Council in like manner. As to payments under this Act.

A.D. 1911. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

(Referred to in Section 10.)

PROVISIONS OF THE LONDON COUNTY TRAMWAYS (ELECTRICAL POWER) ACT 1900 INCORPORATED WITH PART II. OF THIS ACT.

Number of Section.	Marginal Note.
3	Use of electrical power.
4	Special provisions as to use of electrical power.
6	Power to construct and provide appliances.
7	Further provisions as to paving materials of roads.
9	Application of materials excavated in construction of works.
10	Alterations in streets &c.
11	Electrical power works subject to Tramways Act 1870.
12	Drainage and cleaning of rails and conduit.
13	Reference of certain questions to arbitration.
14	Posts &c. to be removed if user discontinued.
22	Agreements as to supply of electric energy.

SECOND SCHEDULE.

(Referred to in Section 20.)

DESCRIPTION OF PORTIONS OF STREETS OF WHICH CARRIAGEWAY IS TO BE WIDENED.

Name of Thoroughfare.	Parish.	Metropolitan Borough.	Side or Sides of Thoroughfare.	Description.
Waldram Road.	Lewisham	Lewisham	Northern	Between points respectively 1 chain or thereabouts westward and 2 chains or thereabouts eastward of the centre of the bridge carrying the London Brighton and South Coast Railway over Waldram Road.

A.D. 1911.

Name of Thoroughfare.	Parish.	Metropolitan Borough.	Side or Sides of Thoroughfare.	Description.
Waldram Road— <i>cont.</i>	Lewisham	Lewisham	Southern	Between points respectively 1 chain or thereabouts westward and 1 chain or thereabouts eastward of the centre of the said last-mentioned bridge.
Park Road	Do.	Do.	North Western.	Between Stanstead Road and a point 1 chain or thereabouts north-eastward thereof.
Stanstead Road.	Do.	Do.	Do.	Between Stanstead Grove and a point $\frac{1}{2}$ chain or thereabouts eastward of Blythe Hill Lane.
Do.	Do.	Do.	Both	Between points respectively $2\frac{1}{2}$ chains or thereabouts and $8\frac{1}{2}$ chains or thereabouts eastward of Faversham Road.
Catford Hill	Do.	Do.	North Western.	Between Ravensbourne Park and a point $\frac{1}{2}$ chain or thereabouts westward thereof.
Dalston Lane.	St. John Hackney.	Hackney	Southern	Between points respectively 2 chains or thereabouts and 4 chains or thereabouts eastward of Ramsgate Street.
Graham Road.	Do.	Do.	Northern	Between Dalston Lane and a point 1 chain or thereabouts westward of Navarino Road.
Do.	Do.	Do.	Do.	Between Navarino Road and a point 2 chains or thereabouts westward of Marvin Street.
Do.	Do.	Do.	Do.	Between Mare Street and a point 1 chain or thereabouts westward thereof.
Do.	Do.	Do.	Southern	Between Dalston Lane and Greenwood Road.
Do.	Do.	Do.	Do.	Between a point 1 chain or thereabouts eastward of Navarino Road and a point 2 chains or thereabouts westward of Marvin Street.
Mare Street	Do.	Do.	Western	Between Graham Road and a point $\frac{1}{2}$ chain or thereabouts northward thereof.

A.D. 1911.

THIRD SCHEDULE.
(Referred to in Section 30.)DESCRIPTION OF PROPERTIES OF WHICH PORTIONS ONLY ARE REQUIRED
TO BE TAKEN BY THE COUNCIL.

Improvement.	Metropolitan Borough.	Number on deposited Plans and in Book of Reference.	Description.
Widenings at London Road Devonshire Road and Waldram Road.	Lewisham	1 2 3 4 5 6 7 16 17 21 22 23	Forecourts. Part of yard. Forecourts and steps.
Widenings at Stanstead Road Catford Hill and Catford Road.	Lewisham	3 4 5 6 7 8 9 10 11 12 14 15 16 17 18 19 20 21 22 23 24 27 28 29 30 32 33 34 36 37 38 39 40 41 42 43 44 45 46 47 49 50 51 52 53 54 55 58 60 61 62 63 64 65 66 68 69 70A 71 73 74 75 76 77 78 79 80 81 85 86 87 88 89 90 91 92 93 94 95 96 98 104 105 106 107 108 114 115 116 117 118	Forecourts. Forecourt carriage-drive and gates. Forecourts. Forecourt and land. Forecourts. Land. Forecourts. Roadway. Forecourt and walls. Forecourts. Forecourt walls gates and railings. Forecourts. Forecourt and bakehouse. Forecourts. Forecourt carriage-drive walls gates and railings. Forecourts. Forecourt and part of yard. Workshops showroom part of yard wall palings and gates. Forecourt and part of roadway. Forecourts. Land. Forecourt.
Widenings at Dalston Lane and Graham Road.	Hackney	6 8	Passage. Part of shop.

A.D. 1911.

Improvement.	Metropolitan Borough.	Number on deposited Plans and in Book of Reference.	Description.
Widenings at Dalston Lane and Graham Road— <i>cont.</i>	Hackney	12	Railway station offices yard and wall (Dalston Junction).
		13	Shop.
		17	Forecourt steps and wall.
		19	Forecourt cellar and wall.
		21 22 23 24 25	Forecourts.
		26 27 28 29 30	
		31 32	Part of garden and railings. Forecourts. Roadway.
		33	
		34 35	
		36	
Site for car shed - -	Camberwell	1	Part of playground.

FOURTH SCHEDULE.

(Referred to in Section 35.)

PROVISIONS OF THE LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS) ACT 1901 INCORPORATED WITH THIS ACT.

Part of Act to which incorporated Sections apply.	Number of Section incorporated.	Marginal Note.
II.	7	Tramways not to be opened until certified by Board of Trade.
	8	As to rails of tramways.
	9	Rails to be maintained on level of roadway.
	10	Saving rights of access to sewers.
	11	Penalty for not maintaining rails and roads in good condition and inspection of tramways.
	14	Use of tramways by road authorities for certain local purposes.
	15	Certain powers of breaking up tramways for laying electric lines extended to widened tramways.
	17	Power to Council to work tramways.
	19	For protection of Postmaster-General (except subsection (5) of paragraph (b) of that section).
	22	Provision against interference with tramways.
	24	Provision as to general Tramway Acts.
III.	29	Streets may be raised or lowered.
	30	Deviation from line and levels.
	32	Carriageway footway sewers and other works.
	33	Directing how pavement shall be laid and made.
	34	Sewers or drains to be arched over or filled up.
	35	Power to alter steps areas pipes &c.
	38	Power to sell materials.

A.D. 1911.

Part of Act to which incorporated Sections apply.	Number of Section incorporated.	Marginal Note.
IV.	41	Power to certain persons to grant easements &c. by agreement.
	42	Correction of errors &c. in deposited plans and book of reference.
	43	Power to Council to enter upon property for survey and valuation.
	44	Costs of arbitration &c. in certain cases.
II. and III.	48	Alteration of position of water gas and other pipes.
	49	For protection of gas and water companies.
III.	50	Alteration of electric lines.
	52	Power to lease surplus lands.
	54	Council may sell land in the first instance without having previously granted a lease thereof.
IV.	55	Council may let or exchange lands.
	57	Receipts of Council to be effectual discharges.
	58	Power to Council to make agreements with owners of property &c.
	62	Removal of human remains from burial grounds.
III.	66	Agreements for closing accounts in cases of joint works.
II.	68	Separate account of receipts and payments relating to tramways.

PROVISIONS OF THE LONDON COUNTY COUNCIL (TRAMWAYS AND IMPROVEMENTS) ACT 1907 INCORPORATED WITH THIS ACT.

Part of Act to which incorporated Sections apply.	Number of Section incorporated.	Marginal Note.
II.	12	Application of section 32 of Tramways Act 1870.
	14	Power to make additional crossovers and to double tramway lines.
	17	Power to Postmaster-General in relation to posts &c.
II. and III.	21	Power to make subsidiary works stop up streets &c.
IV.	32	Council to dispose of lands within a certain period.
	33	As to sale of ground rents.
II.	37	Amending section 12 of London County Tramways (Electrical Power) Act 1900.
II. III. and IV.	40	Power to stop up ways temporarily.

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